

24STCV31927 24STCV31927

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 24STCV31927 Hearing Date: June 23, 2026 Dept: 529

MOTION TO REOPEN DISCOVERY TO COMPEL & COMPLETE

DEPOSITION OF PLAINTIFF'S DESIGNATED EXPERT RANDALL BOUNDS OR ALTERNATIVELY, TO

EXCLUDE THEIR TESTIMONY AND FOR SANCTIONS

Date

of Hearing: June 23, 2026 Trial Date: None set.

Department:

529 Case No.: 24STCV31927

Moving

Party: Defendant American Honda

Motor Co., Inc.

Responding

Party: No opposition.

BACKGROUND

On December 4, 2024, Plaintiff Jimmy Zamora filed a

complaint against Defendant American Honda Motor Co. for violation of the Song-Beverly Consumer Warranty Act.

[TENTATIVE]

RULING:

Defendant American Honda Motor Co., Inc.'s Motion to

Reopen Discovery to Compel & Complete Deposition of Plaintiff's Designated

Expert Randall Bounds or Alternatively, to Exclude Their Testimony and for

Sanctions is GRANTED.

DISCUSSION

Defendant American Honda Motor Co., Inc. moves for an

order reopening discovery for the purpose of compelling and completing the

deposition of Plaintiff's designated expert, Randall Bounds, pursuant to Code

of Civil Procedure section 2024.050. In the alternative, AHM seeks an order

precluding Plaintiff's expert from testifying at trial. AHM also seeks monetary

sanctions against Plaintiff Jimmy Zamora and/or Plaintiff's counsel of record,

Prestige Legal Solutions, P.C., in the amount of \$2,524.00 for failing to

produce Plaintiff's designated experts for deposition.

Code of Civil Procedure section 2024.030 requires that

all designated expert witnesses be made available for deposition no later than

fifteen days prior to the start of trial. On motion of any party, the court may

grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set. This motion shall be accompanied by a meet and confer declaration demonstrating a good faith effort at informal resolution. (CCP §2024.050(a).)

The court shall take into consideration any matter relevant to the leave requested, including, but not limited to: (1) the necessity and the reasons for the discovery, (2) the diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier, (3) any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party, and (4) the length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action.” (CCP § 2024.050(b).)

Defendant AHM argues Plaintiff designated Randall

Bounds thereby entitling AHM to take his deposition. However, after several attempts to set up a time to depose Mr. Bounds, AHM contends Plaintiff has

still not provided dates for the deposition of Randall Bounds nor has he been de-designated. (Espinosa Decl. ¶4.) After balancing the factors and considering the equities, the court grants Defendant AHM's motion to reopen discovery to compel and complete the deposition of Plaintiff's designated expert Randall Bounds. As noted by AHM, Mr. Bonds is expected to testify regarding the inspection of the subject vehicle, its repair history, and the reasonableness of the repair attempts and AHM would be prejudiced without being afforded the opportunity to depose the expert witness it intends to call at trial.

Based on the foregoing, Defendant American Honda Motor Co., Inc.'s Motion to Reopen Discovery to Compel & Complete Deposition of Plaintiff's Designated Expert Randall Bounds or Alternatively, to Exclude Their Testimony and for Sanctions is GRANTED.

Defendant AHM also seeks monetary sanctions against Plaintiff and Plaintiff's counsel jointly and severally in the amount of \$2,524.00 for misuse of the discovery process without substantial justification.

The court grants the request for monetary sanctions in the amount of \$1,369.00.